

MEXICAN HISTORY



A Primary Source Reader

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Plan de San Luís Potosí

People, in their constant efforts that the ideals of liberty and justice triumph, are forced, at certain historical moments, to make their greatest sacrifices.

Our beloved country has reached one of those moments. A force of tyranny, to which we Mexicans were not accustomed to suffer since we won our independence, oppresses us to such a degree that it has become intolerable. In exchange for that tyranny we are offered peace, but for the Mexican nation it is a shameful peace because its basis is not law, but force; because its object is not the glory and prosperity of the country, but to enrich a small group who, abusing the power of their position, have converted government offices into fountains of exclusive personal benefit, unscrupulously exploiting lucrative concessions and contracts.

The Legislative and Judicial powers are completely subordinated to the Executive Office; the division of powers, the sovereignty of the states, the liberty of the common councils, and the rights of citizens exist only on paper in our Magna Carta;

*From U.S. Congress, Senate Subcommittee on Foreign Relations, *Revolutions in Mexico*, 62nd Cong., 2nd sess. (Washington, DC: U.S. Government Printing Office, 1913), pp. 724-730, passim. Translated by the editors.

in fact, it might almost be said that what reigns in Mexico is martial law; the justice system, instead of imparting protection to the weak, merely serves to legalize the plundering committed by the strong; the judges instead of being the representatives of justice, are the agents of the Executive, whose interests they faithfully serve; the chambers of congress have no other will than that of the dictator; the governors of the States are designated by him and they in turn designate and similarly impose the municipal authorities.

As a result, the entire administrative, judicial, and legislative machinery obey a single will, the caprice of General Porfirio Díaz, who during his long administration has shown that the principal motive that guides him is to maintain himself in power and at any cost.

As a result of such a system of government, profound discontent has been felt throughout the Republic for many years; however General Díaz, with great cunning and perseverance, has succeeded in annihilating all independent elements, so that it was not possible to organize any sort of movement to take from him the power of which he made such bad use. The evil constantly became worse, and the vehemence of General Díaz to impose a successor upon the Nation in the person of Mr. Ramon Corral* carried that evil to its limit and caused many Mexicans, although lacking recognized political standing, since it had been impossible to acquire it during the 36 years of dictatorship, to throw ourselves into the struggle to recover the sovereignty of the people and our rights on purely democratic grounds.

The National Anti-re-election Party (Partido Nacional Antireeleccionista), among other parties dedicated to the same ends, was organized, proclaiming the principles of effective suffrage and no reelection, as the only thing that would save the Republic from the imminent danger with which it is threatened by the extension of a dictatorship, every day more onerous, more despotic, and more immoral.

The Mexican people succeeded in supporting this party, and, responding to the call that it made, sent representatives to a Convention in which the National Democratic Party (Partido Nacional Democrático) was also represented, which also represented the will of the people. Said Convention designated candidates for the presidency and vice-presidency of the Republic, with said nominations falling to Mister Francisco Vázquez Gómez and myself, as vice-president and president, respectively.

While in a completely disadvantageous situation, due to the fact that our adversaries could depend upon full official forces, to which they resorted unscrupulously, we believed that our duty, to serve the people, required that we accept such an honorable designation.

In Mexico, as a democratic Republic, public power can have no other origin, nor basis than the will of the people, and the latter cannot be subordinated to methods fraudulently carried out.

For this reason the Mexican people have protested against the illegality of the last election and, desiring to use successively all the recourses offered by the laws of the Republic, in due form asked for the nullification of the election by the Chamber of Deputies, notwithstanding they recognized no legal origin in said body and knew beforehand that, as its members were not the representatives of the people, they would carry out the will of General Díaz, to whom exclusively they owe their investiture.

In such a state of affairs the people, who are the only sovereign, also protested energetically against the election in imposing manifestations in different parts of the Republic; and if the latter were not general throughout the national territory, it was due to the terrible pressure exercised by the government, which always quenches in blood any democratic manifestation, as happened in Puebla, Vera Cruz, Tlaxcala, and other places.

But this violent and illegal system can no longer continue.

I fully realize that if the people have designated me as their candidate for the presidency it is not because they have had an opportunity to discover in me the qualities of a statesman or of a ruler, but the virility of the patriot determined to sacrifice himself, if need be, to obtain liberty and to help the people free themselves from the odious tyranny that oppresses them.

From the moment I threw myself into the democratic struggle I knew very well that General Díaz would not bow to the will of the nation; and, the noble Mexican people, in following me to the polls, also knew perfectly the outrage that awaited them; but in spite of this, when necessary, the people offered up a significant contingent of martyrs for the cause of liberty, and with wonderful stoicism went to the polls where they suffered all sort of abuse.

But such conduct was indispensable to demonstrate to the whole world that the Mexican people are fit for democracy, that they are thirsty for liberty, and that their present rulers do not measure up to their aspirations.

Furthermore, the attitude of the people before and during the election, as well as afterwards, shows clearly that they energetically reject the government of General Díaz and that, if those electoral rights had been respected, I would have been elected for President of the Republic.

Therefore, in accordance with the national will, I declare the recent election illegal, and therefore the Republic without rulers, and I assume the presidency of the Republic on a provisional basis, until the people designate their rulers pursuant to the law. In order to attain this end, it is necessary to throw from power the audacious usurpers whose only claim to legality is reflected in a scandalous and immoral fraud.

With all the honor required of the situation, I declare that it would be a weakness on my part and treason to the people, who have placed their confidence in me, not to put myself at the front of my fellow citizens, who anxiously call me from all parts of the country, to compel General Díaz by force of arms, to respect the national will.

The current government, though it originates in violence and fraud, from the moment it was tolerated by the people, might be considered by foreign nations as having certain legal standing until the 30th of next month, at which time its powers

*Ramón Corral Verdugo (1854-1912), vice president of Mexico from 1904 to 1911.

expire; however, as it is necessary that the incoming government, which was spawned by the recent fraud, not be recognized or take power, or that at the least it encounter the majority of the Nation protesting, with arms in hand against this usurpation, I have designated Sunday the 20th of November so that beginning at six in the afternoon on, in all populations throughout the Republic, [the people] raise up in arms in accordance with the following.

Plan

1. The elections held in June and July of the current year for president, vice-president, Supreme Court justices, and delegates and senators are declared null and void.
2. The current government of Porfirio Díaz is no longer recognized, nor any of the authorities whose power ought to come from popular election, for not only were they not elected by the people, they have lost the little claim to legal authority they might have had and, by means of the power placed at their disposition by the people and for the defense of their interests, perpetrating and sanctioning the most scandalous electoral fraud recorded in the history of Mexico.
3. In as much as possible, and in order to avoid the difficulties inherent in any revolutionary movement, it is declared that all laws and regulations promulgated by the current administration will remain in effect, reserving the right, in due time and in accordance with the constitution, to reform those laws that are found in flagrant violation of the principles proclaimed in this manifesto. All legislation, judicial decisions and decrees that sanction the management of funds and accounts of all Porfirian administration representatives; for as soon as the Revolution succeeds, investigative commissions will be formed in order to judge the obligations that federal, state, and municipal governments might have incurred.

In all instances the agreements made by the Porfirian government with foreign governments and businesses before the 20th of the month will be honored.

In violation of the Law of Vacant Lands, and by agreement of the Ministry of Development, or by the error of national courts, numerous small land-holders, the majority of them indigenous peoples, have been dispossessed of their lands. In all fairness, those lands that were taken away by such arbitrary measures should be returned to their former owners, and it is declared that such arrangements and resolutions are subject to revision, and it is required of those who acquired lands by such immoral means, or their heirs, return those lands to their original owners, and pay indemnization for losses suffered. Only in instances where lands have passed on to a third person before the proclamation of this manifesto, will the former owners receive indemnization from those who benefited from the divestiture.

4. In addition to the Constitution and existing laws, the [principle] of no reelection of the president and vice-president of the republic, state governors and municipal presidents is the Supreme Law of the Republic, while related constitutional reforms are enacted.

5. I assume the position of Provisional President of the United States of Mexico with the authority necessary to engage in war against the illegitimate Government of General Díaz.

As soon as the national capital and more than half of the states of the Federation are in the hands of the People (*el Pueblo*), the provisional president will within a month call for special general elections and will turn over power to the President that is elected, as soon as the results of the election are known.

6. The provisional President, before turning over power, will notify Congress of the use made of the powers conferred by this manifesto.

7. On the 20th of November, beginning at six in the afternoon, all citizens of the Republic will take up arms in order to depose the authorities that now govern. The towns that are far from lines of communication will do so beginning at sundown.

8. When the authorities offer armed resistance, they will be made by force of arms to respect the will of the people, but in such cases the laws of war will be vigorously observed, calling special attention to the restrictions related to not using explosives or shooting prisoners. Attention should be called, as well, to all Mexicans, to respect foreigners in their person and interests. . . .

Fellow citizens: If I call upon you to take up arms and bring down the Government of General Díaz, it is not only due to the violations committed during the recent elections, but in order to save the Fatherland from the dark future that awaits it under the continued dictatorship and the nefarious scientific (*científico*) oligarchy, that without scruples and with great speed is taking up and wasting national resources, and that if we allow to remain in power, in a very short time will have completed its work: it will have committed a public offense and devalued the [Mexican] people; it will have sucked all the wealth from the country and left it in utter misery; they will have stained the Fatherland with bankruptcy, which weak, impoverished, and hamstrung, will find itself inert to defend its borders, its honor, and its institutions.

With regard to myself, I have a clear conscience and no one can accuse me of promoting the revolution for personal gain, for it comes from the will of the people, which did everything possible to come to a peaceful agreement I was even willing to denounce my candidacy if General Díaz had permitted the Nation to choose even if it were the vice president of the Republic; however, dominated by incomprehensible pride and willingness to succumb to revolution before ceding an inch, before returning to the people an atom of their rights, before complying with the promises he made to the Nation in the *Noria* and *Tuxtepec* [manifestos], even if it were during the last years of his life.

He himself justified the present revolution when he said: "Let it be that no citizen imposes himself and perpetuates the exercise of power and that this will be the last revolution."

If interests of the Fatherland had weighed upon General Díaz more than his own sordid interests and those of his advisors, making some concessions to the people, this revolution would have been avoided; but now that he has not done it. . . . So much the better! Change will be more rapid and more radical, for the Mexican people, in

place of lamenting like a coward, will accept as a brave challenge, and now that General Díaz intends to rely on brute force to impose upon them this offensive yoke, the people will recur to the same force in order to shake off this yoke, to throw this evil man from power and re-conquer their liberty.

San Luís Potosí, October 5, 1910.
Francisco I. Madero

Central Themes

State formation, land and labor

Suggested Reading

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Related Sources

44. Porfirio Díaz's Political Vision (1871)
47. Precursors to Revolution (1904, 1906)
53. Revolution in Morelos (1911)
54. Land, Labor, and the Church in the Mexican Constitution (1917)

 53. Revolution in Morelos (1911)*

When Francisco I. Madero declared the Plan de San Luís Potosí, diverse groups whose grievances dated back decades, if not longer, took up arms in support of Madero and the Revolution. The peasants of the southern state of Morelos, who recognized Emiliano Zapata as their leader, formed one such group. Upon taking the presidency, Madero called upon the Zapatistas to disarm themselves before he would consider attending to their demands. The armed peasants lost patience with

*Emiliano Zapata et al., "Plan de Ayala," in *Documentos interesantes de la revolución de ideales*; and *Manifiesto del General Emiliano Zapata* (Puebla, Mexico: Imprenta Commercial, 1913), pp. 19-28.
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Article 27

Ownership of the lands and waters within the boundaries of the national territory is vested originally in the Nation, which has had, and maintains, the right to transmit title thereof to private persons, thereby constituting private property.

Private property shall not be expropriated except for reasons of public use and subject to payment of indemnity.

The Nation shall at all times have the right to impose on private property such limitations as public interest may demand, as well as the right to regulate the utilization of natural resources which are susceptible to appropriation in order to conserve them and to ensure a more equitable distribution of public wealth. In light of this objective, necessary measures shall be taken to divide up large landed estates; to develop the operation of small landed holdings; to create new agricultural centers with the lands and waters they need; to encourage agriculture in general; and, to protect natural resources and property from damage to the detriment of society. Centers of population which at present neither have lands nor water, or do not possess them in sufficient quantities for the needs of their inhabitants, shall be entitled to grants thereof, which shall be taken from adjacent properties, while respecting at all times the rights of small land holdings in operation.

In the Nation is vested direct ownership of all natural resources of the continental shelf and the submarine shelf of the islands; of all minerals or substances that in veins, ledges, masses or ore pockets, form deposits of a nature distinct from the components of the earth itself, such as the minerals from which industrial metals and metalloids are extracted; deposits of precious stones, rock-salt and the deposits of salt formed by sea water. . . .

. . . [Ownership] by the Nation is inalienable and imprescriptible, and the exploitation, use, or appropriation of the resources concerned, by private persons or by companies organized according to Mexican laws, may not be undertaken except through concessions granted by the Federal Executive, in accordance with rules and conditions established by law. . . . The Federal Government has the power to establish national reserves and to abolish them. . . . In the case of petroleum, and solid, liquid, or gaseous hydrocarbons, no concessions or contracts will be granted, nor

may those that have been granted continue, and the Nation shall carry out the exploitation of these products, in accordance with the provisions indicated in the respective regulatory law.

It is exclusively a function of the Nation in general to conduct, transform, distribute, and supply electric power to be used for public service. No concessions for this purpose will be granted to private persons and the Nation will make use of the property and natural resources required for these ends. . . .

Legal capacity to acquire ownership of lands and waters of the Nation shall be governed by the following provisions:

(i) Only Mexicans, by birth or naturalization, and Mexican companies have the right to acquire ownership of lands, waters, and their appurtenances, or to obtain concessions for the exploitation of mines or of waters. The State may grant the same right to foreigners, provided they agree before the Ministry of Foreign Relations to consider themselves as nationals in respect to such property, and bind themselves not to invoke the protection of their governments in matters relating thereto. . . . Under no circumstances may foreigners acquire direct ownership of lands or waters within a zone of one hundred kilometers along the borders [of national territory] and of fifty kilometers along the shores of the country. . . .

(ii) Religious institutions known as churches, regardless of creed, may in no case acquire, hold, or administer real estate or hold mortgages thereon; such property held at present either directly or through an intermediary shall revert to the Nation. . . . Places of public worship are the property of the Nation, as represented by the Federal Government, which shall determine which of them may continue to be devoted to their present purposes. Bishoptics, rectories, seminaries, asylums, and schools belonging to religious orders, convents, or any other buildings built or intended for the administration, propagation, or teaching of a religious creed shall at once become the property of the Nation by inherent right, to be used exclusively for the public services of the Federal or State Governments, within their respective jurisdictions. All places of public worship hereafter erected shall be the property of the Nation. . . .

(v) Banks duly authorized to operate in accordance with the laws on credit institutions may hold mortgages on urban and rural property in conformity with the provisions of such laws but may not own or administer more real property than is actually necessary for their direct purpose. . . .

(vii) The centers of population which, by law or in fact, possess a communal status shall have legal capacity to enjoy common possession of the lands, forests, and waters belonging to them or which have been or may be restored to them. . . .

(viii) The following are declared null and void:

(a) All transfers of the lands, waters, and forests of villages, *rancherías* [settlements], groups, or communities made by local officials, state governors, or other local authorities in violation of the provisions of the Law of June 25, 1856, and other related laws and rulings. . . .

(x) Centers of population which do not have *ejidos* [communally held lands] or which are unable to have them restored to them due to lack of titles, impossibility of

identification, or because they had been legally transferred, shall be granted sufficient lands and waters to establish them, in accordance with the needs of the population; but in no case shall they fail to be granted the area needed, and for this purpose the land needed shall be expropriated, at the expense of the Federal Government, to be taken from lands adjoining the villages in question. . . .

(xiv) Landowners affected by decisions granting or restoring communal lands and waters to villages, or who may be affected by future decisions, shall have no ordinary legal right or recourse and cannot institute injunction proceedings.

Article 123

The Congress of the Union, without contravening the following basic principles, shall formulate labor laws which shall apply to:

(A) Workers, day laborers, domestic workers, artisans, and in a general way, to all labor contracts:

(i) The maximum duration of work for one day shall be eight hours.
 (ii) The maximum duration of night work shall be seven hours. The following are prohibited: unhealthful or dangerous work, industrial night work, and all work after ten o'clock at night by minors under sixteen years of age.

(iii) Workers between twelve and sixteen years old shall have a maximum workday of six hours. The work of children under twelve cannot be the object of a contract.

(iv) For every six days of work, a worker must have at least one day of rest.

(v) During the three months prior to childbirth, women shall not perform physical labor that requires excessive physical effort. In the month following childbirth, they shall necessarily enjoy the benefit of rest and shall receive their full wages and retain their employment and the rights acquired under their labor contract. During the nursing period, they shall have two special rest periods each day, of a half hour each, for nursing their infants.

(vi) The minimum wage that each worker must enjoy will be sufficient, taking into account the conditions of each region, to satisfy the basic necessities of a worker's life, his education, and his honest pleasures, considering him as the head of the family. In all businesses, whether agrarian, commercial, industrial, or mineral, workers have the right of participating in the profits, which will be regulated according to paragraph 9.

(vii) Equal wages shall be paid for equal work, regardless of sex or nationality.

(viii) The minimum wage shall be exempt from levies, compensation, or deductions.
 (ix) The rate of minimum wage and the distribution of profits referred to in paragraph 6 will be fixed by Special Commissions that will be formed in each municipality, and subordinate to the Board of Conciliation and Arbitration that will be established in each state. In the absence of these Commissions, the minimum salary will be fixed by the respective Board of Conciliation and Arbitration.

(x) Wages must necessarily be paid in money of legal tender and cannot be paid in goods, promissory notes, or any other token intended as a substitute for money.

(xi) Whenever, due to extraordinary circumstances, the regular working hours of a day must be increased, one hundred percent shall be added to the amount for normal hours of work as remuneration for the overtime. Overtime work may never exceed three hours per day nor should it happen for three consecutive days. Men under sixteen years of age and women of any age may not be admitted to this kind of labor.

(xii) In any agricultural, industrial, or mining enterprise or in any other kind of work, employers shall be obliged to furnish workmen comfortable and hygienic living quarters for which they may collect rent that shall not exceed one half percent monthly of the assessed valuation of the property. They also must establish schools, hospitals, and any other services necessary to the community. If the enterprise is situated within a town and employs more than one hundred workers, it shall be responsible for the first of the above obligations.

(xiii) In addition, in these same work centers, when the population exceeds two hundred inhabitants, a tract of land of not less than five thousand square meters must be reserved for the establishment of public markets, the erection of buildings destined for municipal services, and recreation centers. Establishments for the sale of intoxicating liquors and houses for games of chance are prohibited in all work centers.

(xiv) Employers shall be responsible for labor accidents and for occupational diseases of workers, contracted because of or in the performance of their work or occupation; therefore, employers shall pay the corresponding indemnification whether death or only temporary or permanent incapacity to work has resulted, in accordance with what the law prescribes. This responsibility shall exist even if the employer contracts for the work through an intermediary.

(xv) An employer shall be required to observe, in the installation of his establishments, the legal regulations on hygiene and health, and to adopt adequate measures for the prevention of accidents in the use of machines, instruments, and materials of labor, as well as to organize the same in such a way as to ensure the greatest possible guarantee for the health and safety of workers as is compatible with the nature of the work, under the penalties established by law in this respect.

(xvi) Both employers and workers shall have the right to organize for the defense of their respective interests, by forming unions, professional associations, etc.

(xvii) The laws shall recognize strikes and lockouts as rights of workmen and employers.

(xviii) Strikes shall be legal when they have as their purpose the attaining of an equilibrium among the various factors of production, by harmonizing the rights of labor with those of capital. In public services, it shall be obligatory for workers to give notice ten days in advance to the Board of Conciliation and Arbitration as to the date agreed upon for the suspension of work. Strikes shall be considered illegal only when the majority of strikers engage in acts of violence against persons or property, or in

the event of war, when the workers belong to establishments or services of the Government. . . .

(xx) Differences or disputes between capital and labor shall be subject to the decisions of a Board of Conciliation and Arbitration, consisting of an equal number of workers and employers, with one from the Government. . . .

(xxvii) The following conditions shall be considered null and void and not binding on the contracting parties, even if expressed in the contract:

(a) Those that stipulate a day's work that is inhumane because it is obviously excessive, considering the nature of the work. . . .

(c) Those stipulating a period of more than one week before payment of a day's wages;

(d) Those indicating as the place of payment of wages a place of recreation, an inn, café, tavern, bar, or store, except for the payment of employees of such establishments;

(e) Those that include the direct or indirect obligation of acquiring consumer goods in specified stores or places;

(f) Those that permit the retention of wages as a fine;

(g) Those that constitute a waiver by the worker of indemnification to which he is entitled due to labor accidents or occupational diseases, damages occasioned by the non-fulfillment of the contract, or by being discharged;

(h) All other stipulations that imply waiver of any right designed to favor the worker in the laws of protection and assistance for workers. . . .

Article 130

The federal powers shall exercise the supervision required by law in matters relating to religious worship and outward ecclesiastical forms. Other authorities shall act as auxiliaries of the Federation.

Congress cannot enact laws establishing or prohibiting any religion.

Marriage is a civil contract. This and other acts of a civil nature concerning persons are within the exclusive competence of civil officials and authorities, in the manner prescribed by law, and shall have the force and validity defined by said law.

A simple promise to tell the truth and to fulfill obligations that are contracted is binding on the one who so promises, and in the event of failure to fulfill them, this person shall be subject to the penalties that the law prescribes for this purpose.

The law does not recognize religious groups called churches as legal entities.

Ministers of denominations shall be considered as persons who practice a profession and shall be directly subject to the laws enacted on such matters.

Only the legislatures of the States shall have the power to determine the maximum number of ministers of denominations necessary for local needs.

To practice the ministry of any denomination in the United States of Mexico, it is necessary to be a Mexican by birth.

Ministers of denominations may never, in a public or private meeting constituting an assembly, or in acts of worship or religious propaganda, criticize the fundamental laws of the country or the authorities of the government, specifically or generally. They shall not have an active or passive vote nor the right to form associations for religious purposes.

Permission to dedicate new places of worship open to the public must be obtained from the Secretariat of Government, with previous consent of the government of the State. There must be in every church building a representative who is responsible to the authorities for compliance with the laws on religious worship in such building, and for the objects pertaining to the worship. . . .

No privilege shall be granted or confirmed, nor shall any other step be taken which has for its purpose the validation in official courses of study, of courses pursued in establishments devoted to the professional training of ministers of religion. . . .

Periodical publications of a religious character, whether they be such because of their program, title, or merely because of their general tendencies, may not comment on national political matters nor provide public information on acts of the authorities of the country nor on matters relating directly to the functioning of public institutions.

The formation of any kind of political group, the name of which contains any word or indication whatever that it is related to any religious denomination, is strictly prohibited. Meetings of a political character may not be held in places of worship. . . .

The acquisition by private parties of personal or real property owned by the clergy or by religious organizations shall be governed by Article 27 of this Constitution.

Trials for violation of the above provisions shall never be heard before a jury. . . .

Central Themes

Indigenous people, state formation, land and labor, religion, gender

Suggested Reading

Bortz, Jeffrey. *Revolution Within the Revolution: Cotton Textile Workers and the Mexican Labor Regime, 1910-1923*. Stanford, CA: Stanford University Press, 2008.

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